

25NNCV03820 25NNCV03820

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[TENTATIVE] ORDER GRANTING DEFENDANTS' HUNTINGTON HEALTH AND AMAL KAMIL OBAID-SCHMID, MD
MOTION TO COMPEL THE DEPOSITION OF PLAINTIFF

I. INTRODUCTION

Plaintiff Elvis Tadevosyan ("Plaintiff") brings this medical malpractice action against Defendants Huntington Health, Amal Kamil Obaid-Schmid, M.D., Swapnil Bharat Shah, M.D., and Risser Orthopaedic Group, A Medical Corporation (collectively, "Defendants"), alleging Defendants negligently treated and discharged Plaintiff following orthopedic surgery, resulting in postoperative infection and permanent injuries.

On June 17, 2026, Defendants Huntington Health and Amal Kamil Obaid-Schmid, M.D. ("Defendants") filed the instant motion to compel Plaintiff's deposition. No opposition has been filed.

II. LEGAL STANDARD

C.C.P. §2025.480 provides, in pertinent part, as follows:

(a) If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.

(b) This motion shall be made no later than 60 days after the completion of the record of the deposition and shall be accompanied by a meet and confer declaration under Section 2016.040.

(c) Notice of this motion shall be given to all parties and to the deponent either orally at the examination, or by subsequent service in writing. If the notice of the motion is given orally, the deposition officer shall direct the deponent to attend a session of the court at the time specified in the notice.

(j) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that

the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. commencing with Section 2023.010) in favor of that party and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

III. ANALYSIS

Defendants move to compel Plaintiff's deposition pursuant to Code of Civil Procedure section 2025.450. The motion is unopposed.

Defendants first noticed Plaintiff's deposition in July 2025. Plaintiff objected to several earlier deposition notices on the grounds that the dates were unilaterally selected, and that counsel was unavailable. Defendants thereafter renoticed the deposition several times and ultimately, after Plaintiff's counsel provided available dates, noticed Plaintiff's deposition for May 21, 2026. (Mosely Decl., ¶¶ 4-13.) Two days before the deposition, defense counsel contacted Plaintiff's counsel to confirm Plaintiff's appearance and was advised that counsel had been unable to locate Plaintiff and intended to file a motion to withdraw. (Id., ¶ 14.) On May 21, 2026, neither Plaintiff nor his counsel appeared for the deposition, and a Certificate of Non-Appearance was issued. (Id., ¶ 15.)

The Court finds Defendants properly noticed Plaintiff's deposition and made repeated good faith efforts to secure his appearance. Plaintiff failed to appear for the May 21, 2026, deposition, which was scheduled after Plaintiff's counsel provided available dates, and has shown no substantial justification for his nonappearance. The motion is therefore GRANTED pursuant to Code of Civil Procedure section 2025.450.

IV. CONCLUSION AND ORDER

The Court GRANTS Defendants motion to compel.

The parties are urged to meet and confer in person or otherwise and agree on a date for the deposition. Defendants are ordered to provide notice of this order.

Dated: July 15, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT